

BREYER, J., dissenting

based upon invidious discrimination and without penological justification. See *ante*, at 128–129. In my view, these claims are well pleaded, state violations of clearly established law, and fall within the scope of longstanding *Bivens* law. For those reasons, I would affirm the judgment of the Court of Appeals. I shall discuss at some length what I believe is the most important point of disagreement. The Court, in my view, is wrong to hold that permitting a constitutional tort action here would “extend” *Bivens*, applying it in a new context. To the contrary, I fear that the Court’s holding would significantly shrink the existing *Bivens* contexts, diminishing the compensatory remedy constitutional tort law now offers to harmed individuals.

I shall explain why I believe this suit falls well within the scope of traditional constitutional tort law and why I cannot agree with the Court’s arguments to the contrary. I recognize, and write separately about, the strongest of the Court’s arguments, namely, the fact that the plaintiffs’ claims concern detention that took place soon after a serious attack on the United States and some of them concern actions of high-level Government officials. While these facts may affect the substantive constitutional questions (*e.g.*, were any of the conditions “legitimate”?) or the scope of the qualified-immunity defense, they do not extinguish the *Bivens* action itself. If I may paraphrase Justice Harlan, concurring in *Bivens*: In wartime as well as in peacetime, “it is important, in a civilized society, that the judicial branch of the Nation’s government stand ready to afford a remedy” “for the most flagrant and patently unjustified,” unconstitutional “abuses of official power.” 403 U. S., at 410–411 (opinion concurring in judgment); cf. *Boumediene v. Bush*, 553 U. S. 723, 798 (2008).

I

The majority opinion well summarizes the particular claims that the plaintiffs make in this suit. All concern the conditions of their confinement, which began soon after the